

--SUMMARY--

Decision No. 2832/17

19-Jan-2018

R.Hoare - B.Davis - C.Mannella

- Accident (occurrence)

No Summary Available

12 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w1118n]

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WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 2832/17

BEFORE:

R.M.J. Hoare : Vice-Chair
B. Davis : Member Representative of Employers
C.S. Mannella : Member Representative of Workers

HEARING:

September 18, 2017 at Toronto
Oral
Post-hearing activity completed on November 14, 2017

DATE OF DECISION:

January 19, 2018

NEUTRAL CITATION:

2018 ONWSIAT 251

DECISION UNDER APPEAL:

WSIB decision of Appeals Resolution Officer (ARO) S Yjo, dated November 10, 2015

APPEARANCES:

For the worker:

A. Stevens, Lawyer

For the employer:

A. Esonwanne, Lawyer

Interpreter:

Not applicable

Workplace Safety and Insurance
Appeals Tribunal

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Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail

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REASONS

(i) Introduction

- [1] The worker appeals a decision of the ARO S. Yjo, which concluded that the worker did not have initial entitlement to a low back injury arising from a workplace accident which occurred on November 19, 2014. The ARO also found that the worker was not entitled to loss of earnings (LOE) benefits for the period of November 20 to December 2, 2014. The ARO rendered a decision based upon the written record without an oral hearing.

(ii) Issues

- [2] The issues under appeal are as follows:
1. Entitlement for a low back injury claimed to have been sustained at work on November 19, 2014.
 2. Entitlement to LOE benefits for the period of November 20 to December 2, 2014.

(iii) Background

- [3] The following are the basic facts.
- [4] The now 50-year old worker started as a municipal standards officer with the accident employer in 1994. He claimed he was injured on November 19, 2014 when he fell on some debris while inspecting a house which had been damaged by fire.

(iv) Law and policy

- [5] Since the worker claimed to be injured in 2014, the *Workplace Safety and Insurance Act, 1997* (the WSIA) is applicable to this appeal. All statutory references in this decision are to the WSIA, as amended, unless otherwise stated.
- [6] An “accident” is defined in section 2(1) to include:
- (a) a wilful and intentional act, not being the act of the worker,
 - (b) a chance event occasioned by a physical or natural cause, and
 - (c) disablement arising out of and in the course of employment;
- [7] General entitlement to benefits is governed by section 13:
- 13(1)** A worker who sustains a personal injury by accident arising out of and in the course of his or her employment is entitled to benefits under the insurance plan.
- (2)** If the accident arises out of the worker’s employment, it is presumed to have occurred in the course of the employment unless the contrary is shown. If it occurs in the course of the worker’s employment, it is presumed to have arisen out of the employment unless the contrary is shown.
- [8] The statutory presumption set out in section 13(2) does not apply to an injury by disablement. See, for example, *Decisions No. 268* and *42/89*.

[9] Tribunal jurisprudence applies the test of significant contribution to questions of causation. A significant contributing factor is one of considerable effect or importance. It need not be the sole contributing factor. See, for example, *Decision No. 280*.

[10] Pursuant to section 126 of the WSIA, the Board stated that the following policy packages, Revision #9, would apply to the subject matter of this appeal:

- Policy Packages: 1; 224; 227; 300

[11] We have considered these policies as necessary in deciding the issues in this appeal, in particular:

- *Operational Policy Manual* (OPM) Document No.18-03-02, “Payment and Reviewing of LOE Benefits (Prior to Final Review); and
- OPM Document No. 15-02-04, “Aggravation Basis.”

[12] OPM Document No. 15-02-01, “Definition of Accident”, describes a chance event as “an identifiable unintended event which causes an injury,” an injury itself is not a chance event. The policy defines a disablement as “a condition that emerges gradually over time” or “an unexpected result of working duties.”

[13] OPM Document No. 11-01-01, “Adjudicative Process”, states that an allowable claim must have five points: an employer, a worker, personal work-related injury, proof of accident, and compatibility of diagnosis to accident history. OPM Document No. 11-01-01 provides the following guidelines for determining proof of accident:

Proof of accident

Decision-makers may consider the following when examining proof of accident,

- Does an accident or disablement situation exist?
- Are there any witnesses?
- Are there discrepancies in the date of accident and the date the worker stopped working?
- Was there any delay in the onset of symptoms or in seeking health care attention?

[14] Sections 40 and 43 of the WSIA govern the worker’s entitlement in this case. Section 40 of the WSIA provides in part:

40(1) The employer of an injured worker shall co-operate in the early and safe return to work of the worker by,

- (a) contacting the worker as soon as possible after the injury occurs and maintaining communication throughout the period of the worker's recovery and impairment;
- (b) attempting to provide suitable employment that is available and consistent with the worker's functional abilities and that, when possible, restores the worker's pre-injury earnings;
- (c) giving the Board such information as the Board may request concerning the worker's return to work; and
- (d) doing such other things as may be prescribed. 1997, c. 16, Sched. A, s. 40 (1).

(2) The worker shall co-operate in his or her early and safe return to work by,

- (a) contacting his or her employer as soon as possible after the injury occurs and maintaining communication throughout the period of the worker's recovery and impairment;
- (b) assisting the employer, as may be required or requested, to identify suitable employment that is available and consistent with the worker's functional abilities and that, when possible, restores his or her pre-injury earnings;
- (c) giving the Board such information as the Board may request concerning the worker's return to work; and
- (d) doing such other things as may be prescribed. 1997, c. 16, Sched. A, s. 40 (2).

...

Section 43 of the WSIA provides in part that:

43(1) A worker who has a loss of earnings as a result of the injury is entitled to payments under this section beginning when the loss of earnings begins. The payments continue until the earliest of,

- (a) the day on which the worker's loss of earnings ceases;
- (b) the day on which the worker reaches 65 years of age, if the worker was less than 63 years of age on the date of the injury;
- (c) two years after the date of the injury, if the worker was 63 years of age or older on the date of the injury;
- (d) the day on which the worker is no longer impaired as a result of the injury. 1997, c. 16, Sched. A, s. 43 (1).

...

(3) The amount of the payment is 85 per cent of the difference between his or her net average earnings before the injury and any net average earnings the worker earns after the injury, if the worker is co-operating in health care measures and,

- (a) his or her early and safe return to work; or
 - (b) all aspects of a labour market re-entry assessment or plan. 1997, c. 16, Sched. A, s. 43 (3); 2000, c. 26, Sched. I, s. 1 (6).
- (4)** The Board shall determine the worker's earnings after the injury to be the earnings that the worker is able to earn from the employment or business that is suitable for the worker under section 42 and is available and,
- (a) if the worker is provided with a labour market re-entry plan, the earnings shall be determined as of the date the worker completes the plan; or
 - (b) if the Board determines that the worker does not require a labour market re-entry plan, the earnings shall be determined as of the date the Board makes the decision. 2007, c. 7, Sched. 41, s. 2 (2).

...

(7) The Board may reduce or suspend payments to the worker during any period when the worker is not co-operating,

- (a) in health care measures;
- (b) in his or her early and safe return to work; or
- (c) in all aspects of a labour market re-entry assessment or plan provided to the worker. 1997, c. 16, Sched. A, s. 43 (7).

[15] As noted above, the issue before the Tribunal is the worker's entitlement to LOE benefits. Under section 43(1) a worker who has a loss of earnings as a result of a compensable injury is entitled to LOE benefits. *Decision No. 2474/00* held that under section 43(1) a causal relationship between the injury and wage loss is a condition precedent to the payment of LOE benefits. A refusal of suitable work is not necessarily an act of non-cooperation, but it may lead to a conclusion that the worker's loss of earnings does not result from the injury. Section 43(2) operates to reduce a worker's benefits where the worker refuses suitable employment. Thus, a worker who refuses suitable employment at no wage loss is not entitled to LOE benefits because the loss of earnings is not caused by the injury, but caused by the refusal of the suitable employment.

[16] OPM Document No. 18-03-02 "Payment and Reviewing LOE Benefits (Prior to Final LOE Review)," explains the circumstances in which "Treatment with No Return to Work" is appropriate:

If the nature or seriousness of the injury completely prevents a worker from returning to any type of work, the worker is entitled to full LOE benefits, providing the worker co-operates in health care measures as recommended by the attending health care practitioner and approved by the WSIB. If the worker does not co-operate, the WSIB may reduce or suspend the worker's LOE benefits.

(v) Testimony of the Worker

[17] The worker testified that he worked as a municipal standards officer. The position required him to enforce numerous municipal bylaws regarding the condition and compliance of various structures, including houses, apartments, swimming pools and other structures. The worker testified that the job was physically active as he was often required to walk, climb, bend over, and perform other movements in order to inspect properties. To complete his job duties, he liaised with other municipal departments, such as public health and right of way management, as well as police and fire services.

[18] The worker described working in a particular district of the municipality as assigned. He would be provided with a list of prioritized complaints and would travel by car to investigate these. Once at a designated property, he would take whatever actions were required to investigate the premises for regulatory compliance. He used a computer in his vehicle to write up various required reports, as well as taking notes, filling out forms and posting public notices.

[19] The worker testified that on November 19, 2014, he was directed to go to an address in his district where there had been a serious house fire. When he arrived the police and fire services were still on site. The house had been badly damaged by the fire with many broken and damaged windows and doors. The yard around the house was strewn with burned and wet debris.

[20] As part of his duties, the worker determined that the house was not secure as it was open to the elements from the fire damage. He called a contractor employed by the municipality to attend and secure the windows and doors with plywood as required. The weather that day was wet. Snow started to fall while the worker was at the site.

[21] Once the contractor arrived, the worker proceeded to walk around the property with him, counting the number of windows and doors to be secured. This required the worker to climb over and establish his footing on various piles of soaked, discarded and damaged furnishings, belongings and building materials. While doing this, the worker slipped on a plywood board

which had been made slippery by the water from the firefighting and the falling snow. He jarred his body when he slipped and started to fall, landing on his left hand. He cut his left index finger on some debris.

[22] The worker testified that he was very concerned about the cut on his hand as the debris he had fallen on was very dirty. He was concerned he might develop an infection and wanted to obtain a tetanus shot. He realized that he had jolted his back but given the bloodied state of his finger, most of his attention focused on that injury. The contractor assisted him with first aid, using a kit he had in his truck.

[23] The worker had earlier telephoned his supervisor to advise her of the condition of the site as various actions he was required to take to secure the site would require her attendance. He remained at the site, waiting for his supervisor to arrive as she also had to bring the appropriate public notice to be posted on the damaged home.

[24] The supervisor came to the site of the damaged house. She met with the worker who showed her where he had fallen and discussed his injuries. They remained at the house so that the order about the municipal standards inspection could be posted on the door. The worker testified that the supervisor told him to seek any medical attention he thought was needed and to take care of himself.

[25] The worker left the site and drove through the worsening snow storm to the closest large medical center. He went to the emergency room, mostly out of concern about his hand. He was eventually seen by a doctor who cleaned the wound further, determined it did not need stitches and prescribed a pain killer. The worker did not mention any issues with his back to the doctor during that emergency room visit.

[26] The worker went home after finishing at the hospital. By that time, it was later in the evening. He took several over the counter pain pills because he was wary that his back may have been injured and hoped to forestall any back pain. He went to bed. Waking up in the night, he tried to get up to use the washroom and could not get out of bed or stand. He could not bear weight on his right leg, experiencing bad pain in his buttock and a “shock-like” sensation down his right leg which he assumed was a recurrence of the sciatica he had experienced during earlier bouts of back pain.

[27] The next day, he called his supervisor to report the development of his bad back pain and his inability to come to work. She told the worker to take care of himself. The worker testified that his wife contacted Dr. Saini, his family doctor, and obtained the first available office appointment for him which was several days later as the weekend was pending.

[28] The worker testified that he did not go to an emergency room for his back pain as he knew from earlier bouts of back pain that hospital doctors were unlikely to have any immediate treatment for him and would likely recommend the rest and pain control he was already self-administering. In addition, Dr. Saini knew the history of his back condition. The worker thought it would be more helpful to see Dr. Saini than to go to a doctor at the hospital who did not know him.

[29] The worker saw Dr. Saini on November 24, 2014. In the days between November 20 and 24, the worker could do almost nothing for himself. His wife had to help him with all his activities of daily living, such as getting dressed, showering and using the washroom. Dr. Saini advised him that he should not return to work until December 2, 2014. The worker contacted

Dr. V. Garg, a chiropractor who had previously treated him, but could not obtain an appointment to see him until December 23, 2014. He wanted to go to Dr. Garg as he knew him and had been treated by him before so he waited for the appointment.

[30] The worker testified that he had previously suffered from back pain. This had led him to seek medical treatment in various forms since approximately 2007. In 2010, he missed several weeks from work due to an exacerbation of his low back pain. He had chiropractic treatment and other medical investigations which will be dealt with in greater detail below. The worker testified that one factor contributing to his earlier back problem was the computer he had to carry for work and the way he had to sit in his work vehicle in order to write up his work reports while at various job sites.

[31] The worker testified that he had not seen a chiropractor or physiotherapist for back care at any time in the two years before the 2014 accident. He had been treated by his chiropractor, Dr. Garg, before 2012 on the recommendation of his family doctor, Dr. Saini. He learned various self-care techniques while being treated and employed these to manage his back pain issues as needed. On November 5, 2014, he visited Dr. Saini to complain of an increase in his back pain. The doctor prescribed some physiotherapy but the worker testified that he had not yet followed up to begin any treatment by the time the fall occurred while he was working on November 19.

[32] The worker testified that he was offered modified duties by the accident employer by way of a letter delivered to him on November 27, 2014. He advised them that he could not work as he could not drive or move around properly. He returned to modified office duties on December 2, 2014 and sought chiropractic care with Dr. Garg after December 23, 2014. He remained on modified office duties for several weeks but eventually returned to his regular inspection duties on February 17, 2015.

(vi) Testimony of the worker's supervisor

[33] The accident employer called the worker's supervisor as a witness at the hearing. She testified that she was a supervisor for municipal licensing standards. She ensured that public complaints were properly investigated by her staff, including the worker. She attended on the site where the worker was hurt as an order needed to be posted regarding the securing of the site by municipal standards. This was one of her responsibilities.

[34] When she arrived at the site on November 19, 2014, the worker had already fallen and sustained various injuries. He was awaiting her in his car. The witness recalled that they inspected the site and he showed her the piece of wood he slipped on. He mentioned the injury to his finger but the witness had no recollection of him mentioning any injury or jarring to his back. The worker testified that he recalled telling his supervisor that he had jarred his back as well as hurt his finger. He also recalled that they never went to the site of his fall together but he only pointed out to her the area where he had fallen. She did not take any notes of the incident at the time.

[35] The supervisor recalled that the worker was very concerned about his cut finger because of the dirtiness of the place where he had fallen. She agreed that his concern was appropriate given the dirt and debris on site. She agreed with his plan to obtain a tetanus shot. She recalled that they were at the site together and that the worker was there when she posted the order on the house door. She testified that the contractor was there also. She recalled them all leaving the site

in their respective vehicles at approximately the same time. The worker recalled that he left earlier and the supervisor remained there to secure the site with the contractor.

[36] The witness testified regarding the offer of modified work to the worker on November 27, 2014. She recalled that she spoke to him about the offer. This was something she had to do on behalf of the employer. The worker advised her during the call that his back was really hurting him. She stated that she felt badly because she was tasked to make the offer but thought the worker felt she was giving him a hard time about not being at work. She also sent him a written offer of modified work duties. She confirmed that he returned to modified duties on December 2, 2014. She had not worked with him extensively before the workplace accident but became aware of his earlier low back problems. She confirmed that several days after the accident, when modified work was offered, it was apparent that the worker was suffering from back pain. The witness does not remember him indicating his back might be hurt at the accident site. On November 19, 2014, she was more aware of the finger injury.

(vii) Medical Evidence

[37] The medical evidence indicates that the worker had lower back pain in the years preceding the 2014 workplace accident. A significant incident was experienced in late 2009 to early 2010 during which the worker received related health care treatment and also missed time from work. As indicated in the worker's testimony, the low back pain in 2009 was precipitated by a change in his work duties, requiring him to carry a computer and to use it in his work vehicle to type up reports. This led to some awkward positioning of the worker's body which caused back pain and sciatica. The worker confirmed in various medical reports in the Case Record that he had been experiencing back pain for several years before the 2009 bout.

[38] The most comprehensive medical report about the worker's back pain, pre-dating the 2014 workplace accident, is the report of the rheumatologist he visited. This report described the worker's pre-accident impairment of his low back. On July 6, 2010, Dr. Ami Mody wrote:

In the 2007 MRI, [the worker] was seen to have herniated disc at L5-S1 abutting the right S1 nerve root. The same findings were seen in 2009 MRI when he was going through intense pain. When he didn't get any better another MRI was ordered couple of months later and was done 2 months after that in April. This time the MRI showed a mass next to the L5-S1 herniated disc pinching the S1 nerve root. This mass was reassessed in another MRI 2 months after that confirmed it as a resolving hematoma.

Assessment: He has a potential for worsening the herniated disc and causing radicular symptoms at least since 2007. He was doing fine until made...to work in an awkward position twisted to the right. Thankfully, the pressure on the right S1 nerve root appears to be subsiding as the hematoma gets resolved. **However, he will likely be at risk for another S1 radicular pain episode...** (Emphasis added).

[39] A further Magnetic Resonance Imaging (MRI) scan was performed on July 11, 2011. This describes the pre-accident impairment which the worker had prior to 2014. Dr. J. Chan, radiologist, wrote the following MRI report:

Impression: There is a mild right paramedian disc protrusion at L5-S1 which compresses the transversing right L5 nerve root. A mild posterior disc bulge with annular tear is noted at L4-5. No central canal stenosis is noted.

[40] There are also clinical notes from Dr. Saini which reference a visit the worker made on November 5, 2014, about two weeks before the workplace accident. The worker had experienced

two days of back pain in his sacroiliac joint. The doctor makes a recommendation for physiotherapy. The worker confirmed this in his testimony and advised that he had not sought any further treatment before the November 19 workplace accident despite his doctor's recommendation.

- [41] The next note from Dr. Saini refers to a visit on November 24, 2014. This is the visit arranged by the worker's wife for the first available appointment after the worker fell. Dr. Saini's note to the worker's records mentions the fall at work on November 19 and the finger laceration. It also mentions the worker's back pain since November 21, 2014 and diagnoses back spasm. Dr. Saini also provided a note that the worker remain off work until December 1, 2014.

(viii) Analysis

- [42] The appeal is allowed for the reasons which follow.

- [43] The Panel notes that OPM Document No. 15-02-04, "Aggravation Basis" addresses the worker's situation in this appeal. The policy states:

Determining entitlement for aggravation of a pre-accident impairment

Entitlement for aggravation of a pre-accident impairment is accepted when the clinical evidence demonstrates a relationship between the pre-accident impairment and the degree of impairment resulting from the accident, and the impairment after the accident is greater than would be expected owing to the pre-accident impairment. When it is accepted that a minor work-related accident aggravated a pre-accident impairment benefits are paid until the worker returns to the pre-accident state.

- [44] The Panel finds that there is evidence of a pre-accident impairment in that the worker had a diagnosed low back condition, with acute flare ups of pain requiring various medical treatments and tests between late 2009 and mid-2011. The medical evidence in late 2009 and early 2010, indicated that the worker received health care treatment from various health care professionals and missed several weeks of work. This meets the definition of pre-accident impairment in the applicable policy.

- [45] The ARO made a finding in their decision which is the subject of this appeal which does not appear to be supported by either the evidence in the worker's testimony or in the letter from the worker's chiropractor, Dr. Garg. The ARO wrote in their decision, "Regarding whether the 2014 incident aggravated the worker's ongoing back problems, I am not persuaded an aggravation occurred...the worker was in an acute phase of his physiotherapy treatment just prior to the work incident..."

- [46] In a letter dated September 12, 2017, Dr. Garg stated that he had not treated the worker at any time between September 2014 and December 23, 2014. This belies the ARO's assumption that because Dr. Saini had recommended physiotherapy for the worker when he visited his doctor complaining of back pain on November 5, 2014 that the worker was undergoing treatment at the time of the fall. The Panel finds that he was not under active treatment when he fell at work on November 19, 2014.

- [47] The worker testified that he had experienced various exacerbations of his back pain about two weeks before his fall at the site of the house fire. Dr. Saini recommended physiotherapy for the back pain on November 5, 2014 but the worker never followed up on that recommendation and was then hurt in the fall on November 19. The Panel finds that the worker sought medical treatment for an increase in his longstanding condition of intermittent back pain but for whatever

reason, he did not pursue that recommended treatment before he fell at work two weeks later. The Panel finds that the fall at work worsened the low back pain to a considerable degree as confirmed by the worker's development of intense pain during the night after he fell with an inability to undertake basic actions such as walking and standing for almost two weeks afterwards. The Panel finds that the workplace fall precipitated an aggravation of a pre-accident impairment.

[48] The Panel also was not persuaded by the employer's counsel's arguments that the fact that the worker did not report the back pain to the emergency doctors on November 19, 2014 when he presented to have his finger treated meant that the back pain he experienced the next day was not related to the fall of November 19, 2014. The Panel accepts the worker's testimony that he had experienced back pain for many years and was experienced with self-care, using various exercises and over the counter pain medicines to address his low back pain. Occasional back pain was a fact of life for the worker. When he fell at work, the cut on his hand was the most evident and potentially dangerous wound given the refuse and dirt in the area where he fell. It is not surprising that he was most immediately concerned with the cut and possible infection. Although he was aware that he had jarred his back, it was not hurting him immediately but his finger was requiring immediate attention.

[49] The worker recalls mentioning the jarring of his back in the fall to his supervisor. The supervisor does not recall him mentioning it when she came to the site. Nevertheless, she attended at many sites and did not take notes of the particular incident. The Panel notes that she did not question the worker's report of back pain in the days subsequent to the fall when he began to miss work. The supervisor included the back injury in the Form 7 without questioning it or making any note that she did not believe it was a result of the fall. It was back pain which made the worker unable to come to work from November 20 and following, not the hand laceration which appeared to resolve without further incident.

[50] The Panel also finds that the fall on November 19 aggravated the worker's pre-accident low back pain. There may be some slight inconsistencies in Dr. Saini's notes where he states that the worker began experiencing back pain on November 21, 2014. The worker was consistent throughout his testimony, and at other points of recounting in the Case Record, that his pain began in the overnight period between November 19 and 20. On November 20, he could not report for work and advised the accident employer that he could not work because of intense back pain. The first available appointment with Dr. Saini was not until November 24, 2014. The employer's counsel questioned why the worker did not go to the hospital again. The worker testified that he knew why his back was hurting and preferred to see his family doctor, and eventually his chiropractor, both of whom he knew and who knew his history.

[51] Therefore, the Panel finds that the worker aggravated a pre-accident impairment of his low back in the fall of November 19, 2014. Although he may only have felt a jarring sensation when he fell, the onset of severe pain within twelve hours of the fall is indicative that the fall aggravated the worker's ongoing back condition. This was confirmed by Dr. Saini and Dr. Garg. Therefore, the worker has entitlement for a low back injury on an aggravation basis.

[52] With regard to LOE entitlement for the period from November 20 to December 2, 2014, the Panel finds the worker is entitled to LOE benefits for the period based on the facts in evidence which support the finding that the worker was injured on November 19, 2014, was unable to work as a result for the period at issue, was actively seeking health care as a result of

the injury and was advised by Dr. Saini, once he was seen by the doctor on November 24, 2014, that he should not return to work until December 2, 2014. Therefore, he incurred a loss of earnings as a result of the compensable injury, and he is entitled to LOE benefits under section 43(1) and the applicable policy.

DISPOSITION

[53] The appeal is allowed.

[54] The worker has entitlement to an aggravation of his low back arising from the November 19, 2014 workplace accident.

[55] The worker is entitled under section 43 to full LOE from November 20, 2014 to December 2, 2014.

[56] The nature and duration of benefits flowing from this decision will be returned to the WSIB for further adjudication, subject to the usual rights of appeal.

DATED: January 19, 2018

SIGNED: R.M.J. Hoare, B. Davis, C.S. Manella